

**DEPARTMENT EIGHT
JUDGE WENDY GETTY
707-207-7308
TENTATIVE RULINGS SCHEDULED FOR
WEDNESDAY, JULY 22, 2026**

The parties may appear via Zoom with the exception of trials, trial management conferences, order for examinations and mandatory settlement conferences. The information for the Zoom meeting is set forth below.

The tentative ruling shall become the ruling of the court unless a party desiring to be heard contacts the judicial assistant of the department hearing the matter by 4:30 p.m. on the court day preceding the hearing, and further advises that such party has notified the other side of its intention to request a hearing. A party requesting a hearing must notify all parties of the request to be heard by 4:30.

**WELLS FARGO BANK N.A. v DANIECA J. GO
CASE NO. CL24-09483**

Motion to Set Aside/Vacate Dismissal and Enter Judgment Pursuant to 664.6

TENTATIVE RULING:

Plaintiff's unopposed motion to set aside dismissal of the action and enter judgment pursuant to a stipulation between the parties is GRANTED.

Said stipulation does not include "prejudgment interest" based upon a default. But it does provide for recovery of costs to enforce the stipulation. (Stipulation, ¶ 7.) The court finds that the underlying judgment is \$5,423 and the costs to file this motion was \$60.00 for a total judgment of \$5,493.

Moving party to submit revised judgment consistent with this order.

**In the Matter of the People of the State of California v. \$3,000 and \$244
(Christopher Castillo Claimant)
Case No. CL25-03761**

Motion to Compel Responses to Form Interrogatories (Set One), Special Interrogatories (Set One) and Requests for Production of Documents (Set One)

Motion to Deem Matters Admitted

TENTATIVE RULING:

Parties to appear.

Each of Defendant's notices of motion fails to give notice of the court's tentative ruling system as required by Local Rule 3.9(d).

It is unclear to the court whether Claimant's Fifth Amendment issues have been resolved. It appears that F25-00225 is still pending.

DIAS v. GENERAL MOTORS, LLC
Case No. CU24-04621

Motion by Plaintiff for Attorney's Fees

TENTATIVE RULING

GM failed to file a timely noticed motion to strike or tax costs. The challenges raised in the opposition papers to costs are not considered.

As to the claim for attorneys' fees, Plaintiff seeks \$23,402.50. There was little to no litigation of this file. Although moving papers claim discovery motions were filed, no discovery motion appears in the court's file. It is difficult to reconcile counsel's representations of these efforts given these facts. Three case management conferences were held where counsel appeared remotely. The complaint is largely cookie cutter, as evidenced by erroneous references to BMW OF NORTH AMERICA, but does include specific information related to Plaintiff's individual claim. The matter is not complex.

The rate for attorneys ranging from \$350 to \$525 per hour is reasonable and consistent with Solano County rates for similar levels of experience. The rate of \$150 per hour for paralegals or legal secretaries assisting counsel is reasonable. The rate of \$250 for support staff is not reasonable and is inconsistent with Solano County rates.

A notice of conditional settlement was filed 9/25/25.

The court disallows hours associated to motions to compel discovery responses which were never actually filed despite counsel's representation to the contrary. MZ hours are reduced by 2.1. JLA hours are reduced by 5.5. The balance of the hours appear reasonable.

Based upon the above, the court awards all costs claimed of \$1,423.76. The court additionally awards attorneys' fees in the sum of \$18,732.50 for a total fees and costs award of \$20,156.26.

TASHA LO PORTO et al. v. CITY OF VALLEJO et al.
Case No. CU25-09509

VALLEJO's Demurrer to First Amended Complaint